

The Cable Television Networks (Regulation) Amendment Act, 2000

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Union of India - Act

The Cable Television Networks (Regulation) Amendment Act, 2000

UNION OF INDIA

India

The Cable Television Networks (Regulation) Amendment Act, 2000

Regulation 36 of 2000

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An Act further to amend the Cable Television Networks (Regulation) Act, 1995.

BE it enacted by Parliament in the Fifty- first Year of the Republic of India as follows:-

1.

Short title.-

This Act may be called the Cable Television Networks (Regulation) Amendment Act, 2000 .

2.

Amendment of section 2.-

In the Cable Television Networks (Regulation) Act, 1995 (

7 of 1995

) (hereinafter referred to as the principal Act), in section 2, clause (a) shall be re- lettered as clause (aa) and before clause (aa) as so re- lettered, the fol owing clause shall be inserted, namely:-

(a)

" authorised officer" means, within his local limits of jurisdiction,-

(i)

a District Magistrate, or

(ii)

a Sub- divisional Magistrate, or

(iii)

a Commissioner of Police, and includes any other officer notified in the Official Gazette, by the Central Government or the State Government, to be an authorised officer for such local limits of jurisdiction as may be determined by that Government;'.
3.

Omission of section 5.-

In section 5 of the principal Act, the proviso shall be omitted.

4.

Omission of section 6.-

In section 6 of the principal Act, the proviso shall be omitted.

5.

Substitution of new section for section 8.-

For section 8 of the principal Act, the following section shall be substituted, namely:-

8.

Compulsory transmission of Doordarshan channels.-

(1)

Every cable operator shall, from the commencement of the Cable Television Networks (Regulation) Amendment Act, 2000 , re- transmit at least two Doordarshan terrestrial channels and one regional language channel of a State in the prime band, in satellite mode on frequencies other than those carrying terrestrial frequencies.

(2)

The Doordarshan channels referred to in sub- section (1) shall be re- transmitted without any deletion or alteration of any programme transmitted on such channels.

(3)

The Prasar Bharati (Broadcasting Corporation of India) established under sub- section (1) of section 3 of the Prasar Bharati (Broadcasting Corporation of India) Act, 1990 (25 of 1990

) may, by notification in the Official Gazette, specify the number and name of every Doordarshan channel to be re- transmitted by cable operators in their cable service and the manner of reception and re- transmission of such channels.".

6.

Amendment of section 11.-

In section 11 of the principal Act, for sub- section 1, the following sub- section shall be substituted, namely:-

(1)

If any authorised officer has reason to believe that the provisions of sections 3, 5, 6 or 8 have been or are being contravened by any cable operator, he may seize the equipment being used by such cable operator for operating the cable television network.

7.

Amendment of section 18.-

In section 18 of the principal Act, for the portion beginning with the words" by such officer" and ending with the words" specify in this behalf", the words" by any authorised officer" shall be substituted.

8. Amendment of section 19.-

In section 19 of the principal Act,-

(i)

for the portion beginning with the words" an officer, not below the rank of" and ending with the words" by the State Government in this behalf", the words" any authorised officer" shall be substituted;

(ii)

for the words" any particular programme if it is", the words and figures" any programme or channel if, it is not in conformity with the prescribed programme code referred to in section 5 and advertisement code referred to in section 6 or if it is" s all be substituted.

9.

Amendment of section 20.-

Section 20 of the principal Act shall be re- numbered as sub- section(1) thereof and after sub- section (1) as so re- numbered, the following sub- sections shall be inserted, namely:-

(2)

Where the Central Government thinks it necessary or expedient so to do in the interest of the-

(i)

sovereignty or integrity of India; or

(ii)

security of India; or

(iii)

friendly relations of India with any foreign State; or

(iv)

public order, decency or morality, it may, by order, regulate or prohibit the transmission or re- transmission of any channel or programme.

(3)

Where the Central Government considers that any programme of any channel is not in conformity with the prescribed programme code referred to in section 5 or the prescribed advertisement code referred to in section 6, it may by order, regulate or proh bit the transmission or re- transmission of such programme.

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